

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

THE CITY OF NEW YORK,

AFFIRMATION

Plaintiff,

Index No.

- against -

THE LAND AND BUILDING KNOWN AS 512 WEST
42nd STREET, *et al.*,

Defendants.

-----X

Lieutenant John Corde affirms the following to be true, under penalties of perjury,
pursuant to Rule 2106 of the Civil Practice Law and Rules:

1. I am a member of the New York City Police Department and I am currently assigned to the 10th Precinct. My duties include, but are not limited to, the enforcement of laws concerning alcoholic beverages.

2. This affirmation is based on my personal observations, my review of records of the City of New York, and conversations with officers, employees and agents of the City of New York.

3. I submit this affirmation in support of plaintiff's application for a preliminary injunction and a temporary restraining order enjoining the use of the commercial premises located on the basement, ground floor and second floor of 512 West 42nd Street, New York, New York (the "subject premises"), for the unlicensed sale, on-premises consumption and warehousing of alcoholic beverages.

4. Members of the NYPD have come to know the subject premises as a business operating as "Baby's NYC." This is based on information provided by members of the public, as well as postings to social media websites, such as X and Instagram. The subject premises is

operated as nightclub/lounge that sells alcoholic beverages. This includes, for example, a posting to Instagram advertising an event that was scheduled to take place at the Subject Premises on October 11, 2024. In this posting, it was stated that alcoholic beverages would be offered for sale, including cognac and tequila.

5. Furthermore, upon information and belief, no one has obtained a license from the New York State Liquor Authority (“SLA”) to sell, serve and/or warehouse alcoholic beverages within the subject premises since June 30, 2024, when the prior SLA license expired.

November 1, 2024

6. On the evening of October 31, 2024, going into the morning of November 1, 2024, the NYPD became aware that a Halloween party would take place within the subject premises.

7. In order to be able to quickly respond to any emergency incidents, I and other officers from the 10th Precinct were assigned to remain in the vicinity of the subject premises during this event.

8. Upon arriving at the subject premises, I and the other officers introduced ourselves to individuals who appeared to be employed as security guards and a manager for the subject premises. We made the security guards and manager aware that we were outside the subject premises and we were available to respond to any incidents that required police attention.

9. At approximately 2:20 a.m. on November 1, 2024, the head security guard approached me and stated that one of the patrons had brandished a firearm inside the subject premises. Me and the other officers expressed our concern that the firearms posed an imminent threat to everyone inside the subject premises. The head security guard shared our concern, and thus he granted the NYPD permission to enter the subject premises and have all the patrons exit. The manager also agreed to close the subject premises for the evening once all the patrons had

exited. Shortly thereafter, I and the other officers then entered the subject premises.

10. Upon entering the subject premises I observed approximately 400-500 individuals inside. The other officers and I then started the process of clearing out the subject premises. All of the patrons eventually left without incident.

11. While walking throughout the subject premises I observed that it was set up as a nightclub, in that it had DJ booths and areas for dancing.

12. I also observed several bar areas within the subject premises, all of which were stocked with alcoholic beverages, including spirits and beer. I knew these bottles to contain alcoholic beverages based on my training and experience, as well as the distinctive packaging.

13. Furthermore, I observed cups of alcoholic beverages throughout the subject premises, which I determined to contain alcoholic beverages based on their odor and appearance.

14. At no point during my time inside the subject premises did I observe a valid license issued by the New York State Liquor Authority. Furthermore, upon information and belief, no one obtained a license from the New York State Liquor Authority to sell, serve and/or warehouse alcoholic beverages on October 31, 2024.

I affirm this 19th day of December, 2024, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.


Lieutenant John Corde